

26SMCV02651 26SMCV02651

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-09-10

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Case Number: 26SMCV02651 Hearing Date: September 10, 2026 Dept: 534

Background

On May 12, 2026, Teresa Vazquez filed this Song-Beverly and negligent repair action against Volkswagen Group of America, Inc. and DCH Calabasas-A, LLC.

On

July 9, 2026, Edward B. Moreton, Jr. issued a minute order providing, in relevant part, "A transfer cannot be granted by way of stipulation. The Court takes no action on the stipulation submitted. Parties are directed to reserve/schedule a hearing for Motion to Transfer in Department 534 at Stanley Mosk Courthouse."

Defendants

filed the instant motion on July 24, 2026 to transfer the action from the Beverly Hills Courthouse in the West District to the Van Nuys Courthouse East in the Northwest District.

Judicial

Notice

Defendants'

request for judicial notice of a DMV record is GRANTED.

Motion

to Transfer Between Districts

Standard

The

Local Rules of the Superior Court of Los Angeles County govern the assignment of cases between its districts and departments. (Code Civ. Proc. § 402.) SCLAC Local Rule 2.3(b)(2) authorizes the Supervising Judge of the Civil Division to transfer civil cases from one judicial district to another via a noticed motion on three enumerated grounds: (1) when the case was filed in an improper district; (2) for the convenience of witnesses; or (3) to promote the ends of justice. (SCLAC Local Rule 2.3(b)(2).)

The

Case Was Filed in an Incorrect District

Pursuant

to SCLAC Local Rule 2.3(a)(1)(A) and the Civil Case Cover Sheet Addendum and Statement of Location, this was subject to mandatory filing in the district where the cause of action arose.

The

complaint alleges the repair attempts and negligent repair occurred at Audi Calabasas, which is located at 24650 Calabasas Road, Calabasas, California 91302. Plaintiff used this address on the civil case cover sheet addendum in Step 4: Statement of Reason and Address and identified the West District as the proper filing location.

“The

filing locator on the Superior Court of Los Angeles County website . . . should be used to determine the appropriate filing location.” Inputting Calabasas as the city and 91302 as the zip code splits the proper district using Mulholland Highway as the demarcation line. Causes of action arising from a location North of Mulholland Highway are assigned to the Van Nuys Courthouse East in the Northwest District. The address 24650 Calabasas Road is North of Mulholland Highway.

As

stipulated by the parties, the case was filed in an incorrect district.

Defendants’

Sanction Request is Improper

Defendants

seek sanctions "in the amount of \$5,866.50 pursuant to Code of Civil Procedure section 575.2, subdivision (a)." (Mot. at 8:11-10:25.)

Code

of Civil Procedure section 575.2(a) provides, "[l]ocal rules promulgated pursuant to Section 575.1 may provide that if any counsel, a party represented by counsel, or a party if in pro se, fails to comply with any of the requirements thereof, the court on motion of a party or on its own motion may strike out all or any part of any pleading of that party, or, dismiss the action or proceeding or any part thereof, or enter a judgment by default against that party, or impose other penalties of a lesser nature as otherwise provided by law, and may order that party or his or her counsel to pay to the moving party the reasonable expenses in making the motion, including reasonable attorney fees. No penalty may be imposed under this section without prior notice to, and an opportunity to be heard by, the party against whom the penalty is sought to be imposed."

Defendants

do not cite to any provision in the Local Rules regarding the proper filing location that "provide that if any counsel, a party represented by counsel, or a party if in pro se, fails to comply with any of the requirements thereof, the court on motion of a party . . . may order that party or his or her counsel to pay to the moving party the reasonable expenses in making the motion, including reasonable attorney fees." (Code Civ. Proc. § 575.2(a).) By its express terms, sanctions are permissible under Section 575.2 only if a Local Rule provides for them. (Compare SCLAC Local Rule 3.10 (permitting discretionary sanctions for failure to comply with Chapter 3 of the Local Rules). See also *Sino Century Development Limited v. Farley* (2012) 211 Cal.App.4th 688, 693 n.5 ("Section 575.2 authorizes local court rules to include sanctions for failure to comply with local rule requirements.").)

The

request for sanctions is DENIED as procedurally improper. Moreover, the Court would not impose sanctions for the filing error, even if such sanctions were authorized.

Conclusion

Defendants

Volkswagen Group of America, Inc. and DCH Calabasas-A, LLC's Motion for Intracounty District Transfer and Monetary Sanctions under Code Civ. Proc. § 575.2 and Los Angeles Superior Court Local Rules 2.2 and 2.3 is GRANTED, in part.

This

action is ordered reassigned to the Van Nuys Courthouse East in the Northwest District. The request for sanctions is DENIED.

All hearings currently set in 26SMCV02651 are hereby advanced and vacated.

Notice of case assignment shall be issued shortly.

Counsel for Defendants
to give notice.